



STUDY GUIDE • IEUMUN 2026

UNESCO

United Nations Educational, Scientific and Cultural Organization

Accountability for Heritage Destruction in Armed Conflict

CHAIRS

Nia & Valentina

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01

Letter from the Chairs

A LETTER FROM

Nia & Valentina

Dear Delegates,

We are delighted to welcome you to the United Nations Educational, Scientific and Cultural Organization (UNESCO) Committee at IEUMUN 2026. We are very excited to be your Chairs during this conference full of debate, challenges and, hopefully, a lasting experience for all of you. We promise to be there to guide you and help you progress during these inspiring four days. As you step into this journey, we encourage you to take every moment to show and enhance your debating skills, and, most importantly, to have fun in the process.

My name is Nia, and I am honoured to be one of your Chairs for this conference. I am a second-year student of the dual degree in Law and International Relations. I am originally from Bulgaria, but I study at IE University in Madrid. I have been passionate for MUNs since I joined university, and I love the feeling of personal growth and success it has given me, along with all the intelligent people I have met along the way. I am very eager to meet all of you, listen to your speeches, watch you debate, and, hopefully, find a great and lasting solution for this complex topic.

My name is Valentina, and it is a true pleasure to be one of your Chairs. I am a fourth-year International Relations student at Universidad Nebrija in Madrid. I am originally from Mexico city and am genuinely excited to share these days of debate with all of you. I hope you will raise your placards without hesitation, because every person in this committee has something unique and valuable to contribute to the discussion. Do not be afraid to speak, to question, to challenge and to negotiate. We will do everything to ensure the committee is safe for everyone. We cannot wait to see what you bring to the table.

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List of Abbreviations

AQIM	Al-Qaeda in the Islamic Maghreb
ASOR	American Schools of Oriental Research
HEF	Heritage Emergency Fund
ICC	International Criminal Court
ICRC	International Committee of the Red Cross
ICCROM	International Centre for the Study of the Preservation and Restoration of Cultural Property
ICTY	International Criminal Tribunal for the Former Yugoslavia
IHL	International Humanitarian Law
ILC	International Law Commission
INTERPOL	International Criminal Police Organization
ISIS	Islamic State of Iraq and Syria (also known as ISIL or Da'esh)
NGO	Non-Governmental Organisation
NSAG	Non-State Armed Group

OHCHR	Office of the United Nations High Commissioner for Human Rights
SDG	Sustainable Development Goal
UIS	UNESCO Institute for Statistics
UNESCO	United Nations Educational, Scientific and Cultural Organization
UNODC	United Nations Office on Drugs and Crime
WCO	World Customs Organization

03

About the Committee

History and Establishment of UNESCO

UNESCO, or the United Nations Educational, Scientific, and Cultural Organization, is a specialized UN agency which aims to strengthen international cooperation in areas such as education, science, culture, and information. UNESCO was created on November 16, 1945, after the devastation of World War II, with 37 nations signing its Constitution.¹ It was founded on the belief that lasting peace must be built through intellectual and moral solidarity among people rather than relying solely on political agreements. This principle is reflected in the preamble of its founding charter, which states that “since wars begin in the minds of men, it is in the minds of men that the defences of peace must be constructed”.² The organization works alongside the 194 Member States to address global challenges through initiatives that advance quality education, ensure access to reliable information, promote scientific cooperation and ethical standards for AI, and safeguard cultural heritage.³

Mandate, Functions, and Role within the UN System

As UNESCO is a specialised UN agency, it does not legislate like a State would and cannot force governments to implement specific policies.⁴ The organisations’ recommendations, operational guidelines, reports, declarations, and conventions are not legally binding, except in States where they have been ratified. However, UNESCO’s work does wield

¹ Meskill, L. (2018). *A future in ruins: UNESCO, world heritage, and the dream of peace*. Oxford University Press.

² United Nations. (1945). *Charter of the United Nations*. <https://www.un.org/en/about-us/un-charter>

³ UNESCO. (2023). *World Heritage List*. <https://whc.unesco.org/en/list/>

⁴ Forrest, C. (2010). *International law and the protection of cultural heritage*. Routledge.

influence on Member States in the form of soft power, which is characterised by moral authority, global visibility, peer pressure, and funding coordination instead of a strict legal mandate, all while setting international norms and standards.⁵ Although these instruments depend on State approval and political will, they substantially influence national legislation, inform judicial interpretation, and provide reference points for public policy.⁶ This provides delegates with freedom to newly define what constitutes a threat to cultural heritage especially in this new reality of global armed conflicts, where international actors are essential to the protection of both tangible and intangible heritage around the world.⁷

UNESCO also functions as a global observatory. Through bodies such as the UNESCO Institute for Statistics (UIS), the organization can collect cross-nationally comparable data, track the States' progress in various fields, and consequently issue reports that help to better grasp what States lack and what needs to be changed on a larger scale. Sustainable Development Goal (SDG) 11.4 "Monitoring progress toward safeguarding the world's cultural and natural heritage" collects data on per capita expenditure for heritage preservation across all levels of government and types of heritage.⁸ Through its Survey of Expenditure on Cultural and Natural Heritage, the UIS cooperates with States on the collection of reliable data to monitor global progress, identify areas of funding shortfalls, and ultimately promote the role of culture in sustainable development.⁹ The UNESCO Framework for Cultural Statistics serves as the formalised system to measure and assess the social and economic impact of culture and the creative industries. The Framework provides governments, statistical institutions, and researchers with harmonised definitions, concepts, and methodologies that allow for developing internationally comparable data.

UNESCO is the worldwide leading coordinator and advocate for heritage protection. It brings together governments, international actors, financial institutions, non-governmental organisations (NGOs), research institutions, and private actors to align their efforts around shared goals. As SDG 11 "Make cities and human settlements inclusive, safe, resilient, and sustainable".

⁵ Meskell, L. (2018). *A future in ruins: UNESCO, world heritage, and the dream of peace*. Oxford University Press.

⁶ Forrest, C. (2010). *International law and the protection of cultural heritage*. Routledge.

⁷ Blake, J. (2000). On defining the cultural heritage. *International and Comparative Law Quarterly*, 49(1), 61–85.<https://doi.org/10.1017/S002058930006396X>

⁸ United Nations. (2015). *The 17 Sustainable Development Goals*.<https://sdgs.un.org/goals>

⁹ United Nations. (2025). A realistic goal? Culture in the Sustainable Development Agenda. *UN Chronicle*.<https://www.un.org/en/un-chronicle/realistic-goal-culture-sustainable-development-agenda>

UNESCO and the Protection of Cultural Heritage

UNESCO considers cultural heritage to be more than a collection of objects and traditions.¹⁰ Throughout its history and broad mandate, one of its most significant priorities has been safeguarding cultural heritage.¹¹ The organization maintains that protecting the world's cultural and natural heritage is key to addressing contemporary global challenges. This includes the increasing number of complex emergencies and armed conflicts.¹² UNESCO has consistently emphasized that culture is not merely a consequence of growth but an essential driver to sustainable development, defined as a resolution that meets the needs of the present without compromising the future.

Cultural heritage has been central to UNESCO's identity. Over the decades, the organization has shaped the core international treaties on heritage preservation and diversity. Such as the 1954 Hague Convention¹³, the 1972 World Heritage Convention¹⁴, and the 2003 Convention for the Safeguarding of the Intangible Cultural Heritage,¹⁵ and many more. Together, these conventions provide UNESCO with a global legal framework to support Member States in the protection of cultural heritage. They encourage cooperation and dialogue between nations, create global standards for conservation, and provide the means to understand and protect culturally significant heritage.¹⁶

In addition to the creation of international legal instruments, UNESCO's commitment to protecting the cultural heritage of the world further extends through providing a larger contribution to the UN Sustainable Development Agenda. Today, it is the leading reference within the United Nations for the protection of both tangible and intangible cultural heritage and is acclaimed for its achievements in integrating culture as an essential part of sustainable development. This commitment is reflected in the United Nations 2030 Agenda through SDG 11.

¹⁰ Blake, J. (2000). On defining the cultural heritage. *International and Comparative Law Quarterly*, 49(1), 61–85.<https://doi.org/10.1017/S002058930006396X>

¹¹ Meskell, L. (2018). *A future in ruins: UNESCO, world heritage, and the dream of peace*. Oxford University Press.

¹² UNESCO. (1972). *Convention Concerning the Protection of the World Cultural and Natural Heritage*.<https://whc.unesco.org/en/convention/>

¹³ UNESCO. (1954). *Convention for the Protection of Cultural Property in the Event of Armed Conflict*.<https://en.unesco.org/protecting-heritage/convention-and-protocols/1954-convention>

¹⁴ UNESCO. (1972). *Convention Concerning the Protection of the World Cultural and Natural Heritage*.<https://whc.unesco.org/en/convention/>

¹⁵ UNESCO. (2003). *Convention for the Safeguarding of the Intangible Cultural Heritage*.<https://ich.unesco.org/en/convention>

¹⁶ Boylan, P. J. (1993). *Review of the Convention for the Protection of Cultural Property in the Event of Armed Conflict (The Hague Convention of 1954)*. UNESCO.<https://unesdoc.unesco.org/ark:/48223/pf0000102816>

Funding

UNESCO's initiatives are constrained by a relatively modest and contribution-dependent budget. Its regular budget is composed primarily of assessed contributions from Member States, which covers core functions of the organization. Such as supporting the personnel and offices, both in the headquarters and in the field, as well as a minimum level of programme activities regarding heritage, education, science, culture, communication, etc. UNESCO's abilities are more focused on contributing through its expertise, knowledge-sharing, coordination, and targeted capacity support rather than large-scale funding.

UNESCO relies heavily on voluntary contributions and extra-budgetary resources from States, other international organisations, foundations, and private partners to support many of its concrete initiatives.¹⁷ In this case, the organization relies on targeted trust funds and assistance programs, with a focus on emergency conservation, disaster recovery, and preparatory nomination assistance. The organisation provides annual World Heritage Fund activities, Heritage Emergency Fund (HEF), and open calls for proposals. As opposed to being strictly focused on providing funding, the organization is recognized as a resource for Member States when it comes to developing heritage protection strategies and securing financial assistance from national governments, development banks, multilateral organizations, and additional partners throughout the globe.

Limitations and Challenges

UNESCO has a broad mandate and considerable reach internationally. However, it faces numerous institutional and operational challenges. The organisation cannot enforce its decisions and must rely primarily on the independent implementation of Member States. UNESCO's ability to respond to threats to heritage may also be limited by a lack of funds, inability to access conflict-impacted areas, and the complexity of coordinating international responses from numerous stakeholders.¹⁸ Despite having an important role in developing international norms, the effective protection of cultural heritage is the obligation and responsibility of individual States and the international community.

¹⁷ Di Giovine, M. (2015). *UNESCO's World Heritage Program: The challenges and ethics of community participation*. OpenEdition.<https://books.openedition.org/gup/213>

¹⁸ European Parliament. (2023). *Protecting cultural heritage from armed conflicts in Ukraine and beyond*. Policy Department for Structural and Cohesion Policies.https://www.europarl.europa.eu/RegData/etudes/STUD/2023/733120/IPOL_STU%282023%29733120_EN.pdf

04

The Topic: Accountability for Heritage Destruction in Armed Conflict

Key Terms

Cultural heritage = the physical and intangible legacy that communities inherit from past generations and pass on to future ones. This includes tangible heritage and intangible heritage. UNESCO's legal framework covers both, though the two are protected by different conventions and enjoy very different levels of enforcement.

Tangible cultural heritage = includes monuments, archaeological sites, museums, historic buildings, libraries, archives. Can be further divided into movable and immovable heritage.

Intangible cultural heritage = heritage forming living traditions. Includes oral histories, languages, music, rituals, and craft practices.

World Heritage Sites = properties inscribed on UNESCO's World Heritage List under the 1972 Convention as possessing "Outstanding Universal Value". Their significance transcends borders and belongs to all of humanity. Inscription does not guarantee protection; it does create legal obligations for States of protection.

1945 Hague Convention = cornerstone international treaty for heritage protection in armed conflict. It obliges States to safeguard cultural property in times of war and prohibits deliberate attacks on monuments, museums, and historic sites. The Convention introduced the Blue Shield emblem, the cultural equivalent of the Red Cross to mark protected sites.¹⁹

¹⁹ Blue Shield International. (2020). *About Blue Shield*. <https://theblueshield.org/about-us/>

International Humanitarian Law (IHL) = body of rules that seek to limit the effects of armed conflict. It protects civilians, combatants who are no longer fighting, and cultural property. Both the Hague Regulations and the Geneva Conventions include provisions on cultural heritage.²⁰

War crime = serious violation of the law and customs applicable in armed conflict, defined under the Rome Statute of the International Criminal Court (ICC).²¹ Since the 2016 conviction of Ahmad Al Faqi Al Mahdi, the intentional direction of attacks against protected cultural or religious buildings can constitute a war crime.²² However, this landmark ruling only established individual criminal responsibility. It left the question of State responsibility largely unanswered.^{23 24}

State responsibility = States can be held accountable for internationally wrongful acts attributable to it including the destruction of cultural heritage carried out by its armed forces. This is distinct from criminal responsibility, which attaches to individuals.²⁵

Non-State armed groups (NSAG) = armed organizations that operate outside the direct control of a recognized state. These organisations carried out some of the most systematic heritage destruction in recent history, yet they fall outside the traditional framework of state responsibility and are notoriously difficult to bring before international courts.²⁶

Iconoclasm = the destruction of images refers to the deliberate elimination of cultural or religious symbols, often as an assertion of ideological power. It is a targeted, intentional act designed to erase the identity, memory, and legitimacy of a people.²⁷

²⁰ Henckaerts, J. M., & Doswald-Beck, L. (2005). *Customary international humanitarian law, Volume I: Rules*. Cambridge University Press / ICRC. <https://doi.org/10.1017/CBO9780511804700>

²¹ International Criminal Court. (1998). *Rome Statute of the International Criminal Court*. <https://www.icc-cpi.int/r esource-library/documents/rs-eng.pdf>

²² International Criminal Court. (2016). *Prosecutor v. Ahmad Al Faqi Al Mahdi, Judgment and Sentence* (ICC-01/12-01/15). <https://www.icc-cpi.int/mali/al-mahdi>

²³ Wierczyńska, K., & Jakubowski, A. (2017). Individual responsibility for deliberate destruction of cultural heritage: Contextualising the ICC judgment in the Al-Mahdi case. *Chinese Journal of International Law*, 16(4), 695–721. <https://doi.org/10.1093/chinesejil/jmx029>

²⁴ Schabas, W. A. (2016). *The International Criminal Court: A commentary on the Rome Statute* (2nd ed.). Oxford University Press.

²⁵ International Law Commission. (2001). *Articles on Responsibility of States for Internationally Wrongful Acts*. United Nations. https://legal.un.org/ilc/texts/instruments/english/draft_articles/9_6_2001.pdf

²⁶ Lostal, M. (2017). *International cultural heritage law in armed conflict: Case studies of Syria, Libya, Mali, the invasion of Iraq, and the Buddhas of Bamiyan*. Cambridge University Press.

²⁷ Francioni, F., & Lenzerini, F. (2003). The destruction of the Buddhas of Bamiyan and international law. *European Journal of International Law*, 14(4), 619–651. <https://doi.org/10.1093/ejil/14.4.619>

Memorialisation = the practices of reconstruction, documentation, commemoration, oral testimony through which communities process and preserve the memory of what was lost.

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Introduction to the Topic

The central, painful truth that this committee must confront is this: the international community has known for decades that heritage destruction is wrong, has written laws against it, has condemned it in resolutions and speeches and has almost entirely failed to stop it or meaningfully punish those responsible.³⁰

Cultural heritage is not simply a collection of old objects and pretty buildings. It is the physical embodiment of identity. When the Buddhas of Bamiyan were dynamited by the Taliban in 2001, Afghanistan did not just lose two statues, it lost irreplaceable proof of a pre-Islamic, cosmopolitan past that challenged the Taliban's entire ideology of cultural purity.³¹ When ISIS bulldozed the ancient city of Nimrud in 2015, they did not merely destroy Assyrian ruins, they deliberately severed living people from the oldest layers of their own history.^{32 33}

Heritage destruction is almost never purely incidental. It is frequently a weapon used to demoralize populations, delegitimize national identities, erase evidence of prior occupancy, and signal total domination. Understanding it as such changes everything about how accountability should be designed.³⁴

²⁸ Isakhan, B., & Meskell, L. (2019). UNESCO's project to 'Revive the Spirit of Mosul': Iraqi and Syrian opinion on heritage reconstruction after the Islamic State. *International Journal of Heritage Studies*, 25(11), 1189–1204. <https://doi.org/10.1080/13527258.2019.1578988>

²⁹ UNESCO World Heritage Centre. (n.d.). *Reconstruction of the destroyed mausoleums of Timbuktu (Mali)*. <https://whc.unesco.org/en/canopy/timbuktu/>

³⁰ Lostal, M. (2017). *International cultural heritage law in armed conflict: Case studies of Syria, Libya, Mali, the invasion of Iraq, and the Buddhas of Bamiyan*. Cambridge University Press.

³¹ Francioni, F., & Lenzerini, F. (2003). The destruction of the Buddhas of Bamiyan and international law. *European Journal of International Law*, 14(4), 619–651. <https://doi.org/10.1093/ejil/14.4.619>

³² UNESCO. (2015b). *UNESCO Director-General condemns destruction of Nimrud in Iraq*. <https://www.unesco.org/en/articles/unesco-director-general-condemns-destruction-nimrud-iraq>

³³ ASOR Cultural Heritage Initiatives. (2015). *Cultural heritage destruction and looting in Syria and Iraq: Monthly report*. American Schools of Oriental Research. <https://www.asor.org/chi/>

³⁴ UN Special Rapporteur on Cultural Rights. (2016). *Report on the intentional destruction of cultural heritage (A/71/317)*. United Nations. <https://undocs.org/A/71/317>

The international legal framework that exists to prevent this is substantial, in theory. The 1954 Hague Convention was the first comprehensive treaty dedicated to cultural property protection in armed conflict born directly from the ashes of a war in which Nazi Germany systematically looted and destroyed the cultural wealth of occupied Europe.³⁵ Its two additional Protocols extended protections and tightened obligations.³⁶ The Rome Statute of the International Criminal Court criminalizes attacks on cultural property as a war crime. UN Security Council resolutions, most notably Resolution 2347 of 2017, the first ever adopted exclusively on the protection of cultural heritage have explicitly named heritage destruction as a threat to international peace and security.³⁷ The gap between the law on paper and the law in practice is one of the most striking failures of the post-World War II international order.³⁸

Enforcement of international humanitarian law is extraordinarily difficult during active conflict.³⁹ The very moment when heritage is most at risk, is the moment when international monitors have the least access. Accountability mechanisms designed for interstate conflicts are poorly adapted to non-state armed groups, who command no territory recognized by international law and whose members may never appear before any court. Political will is uneven and selective. The destruction of heritage in the Global South has historically received less international attention than equivalent losses in Europe.⁴⁰ The fundamental architecture of the international system still treats sovereignty as a near-sacred principle, making it extraordinarily difficult to compel States to answer for what their armed forces do.⁴¹

³⁵ Boylan, P. J. (1993). *Review of the Convention for the Protection of Cultural Property in the Event of Armed Conflict (The Hague Convention of 1954)*. UNESCO.<https://unesdoc.unesco.org/ark:/48223/pf0000102816>

³⁶ UNESCO. (1999). *Second Protocol to the Hague Convention of 1954 for the Protection of Cultural Property in the Event of Armed Conflict*.<https://en.unesco.org/protecting-heritage/convention-and-protocols/second-protocol>

³⁷ United Nations Security Council. (2017). *Resolution 2347 (S/RES/2347)*.[https://undocs.org/S/RES/2347\(2017\)](https://undocs.org/S/RES/2347(2017))

³⁸ Lostal, M. (2017). *International cultural heritage law in armed conflict: Case studies of Syria, Libya, Mali, the invasion of Iraq, and the Buddhas of Bamiyan*. Cambridge University Press.

³⁹ International Committee of the Red Cross. (2005). *Customary international humanitarian law, Volume I: Rules*. Cambridge University Press.<https://www.icrc.org/en/doc/assets/files/other/customary-international-humanitarian-law-i-icrc-eng.pdf>

⁴⁰ Maurel, C. (2017, January 11). The unintended consequences of UNESCO world heritage listing. *The Conversation*.<https://theconversation.com/the-unintended-consequences-of-unesco-world-heritage-listing-71047>

⁴¹ International Law Commission. (2001). *Articles on Responsibility of States for Internationally Wrongful Acts*. United Nations.https://legal.un.org/ilc/texts/instruments/english/draft_articles/9_6_2001.pdf

Historical Evolution of Heritage Protection in Armed Conflict

The destruction of cultural heritage during armed conflict is not a modern phenomenon. However, what has changed over time is the degree to which the international community has been willing to recognise it as a legal problem, which requires a collective response.

The earliest attempts to regulate wartime conduct date to the 19th Century. The Lieber Code of 1863 prohibited deliberate destruction of property without military necessity and included early protections for museums and libraries.⁴² The Hague Regulations of 1899 and 1907 subsequently established, in a binding multilateral form, that attacks on historic monuments and institutions dedicated to the arts and sciences were forbidden.⁴³ However, these instruments lacked enforcement mechanisms and applied only to interstate conflicts. Their limitations were exposed during the First World War, when the shelling of Reims Cathedral and the burning of Leuven's medieval library demonstrated that even emblematic European heritage enjoyed no effective protection in practice.⁴⁴

The systematic looting and destruction carried out by the National Socialist regime across occupied Europe exposed the critical limitations of existing international frameworks, providing the direct impetus for the 1954 Hague Convention for the Protection of Cultural Property in the Event of Armed Conflict, the foundational instrument in this field.⁴⁵ For the first time, an international treaty placed heritage protection within a dedicated legal framework linked to a specific intergovernmental organisation.

The 1954 Convention was later supplemented by a Second Protocol in 1999, which introduced enhanced protection for the most significant sites and, critically, established individual criminal responsibility for serious violations, a development whose importance would only become fully apparent with the rise of non-state actors in subsequent decades.⁴⁶ The same period saw the adoption of the 1972 World Heritage Convention, which reframed heritage protection as a matter of shared human interest rather than

⁴² Lieber, F. (1863). *Instructions for the Government of Armies of the United States in the Field* (General Orders No. 100). United States War Department.

⁴³ Hague Convention IV Respecting the Laws and Customs of War on Land. (1907). Articles 27 and 56. <https://ihl-databases.icrc.org/en/ihl-treaties/hague-regs-1907>

⁴⁴ Boylan, P. J. (1993). *Review of the Convention for the Protection of Cultural Property in the Event of Armed Conflict (The Hague Convention of 1954)*. UNESCO. <https://unesdoc.unesco.org/ark:/48223/pf0000102816>

⁴⁵ UNESCO. (1954). *Convention for the Protection of Cultural Property in the Event of Armed Conflict*. <https://en.unesco.org/protecting-heritage/convention-and-protocols/1954-convention>

⁴⁶ UNESCO. (1999). *Second Protocol to the Hague Convention of 1954 for the Protection of Cultural Property in the Event of Armed Conflict*. <https://en.unesco.org/protecting-heritage/convention-and-protocols/second-protocol>

purely national concern, and the 1970 Convention addressing illicit trafficking in cultural objects, which frequently accompanies and finances armed conflict.^{47 48}

The conflicts of the 1990s exposed the inadequacy of this architecture with renewed force. The deliberate shelling of Dubrovnik's Old Town in 1991 and the dynamiting of the Stari Most bridge in Mostar in 1993 demonstrated that heritage destruction was being deployed as a deliberate instrument of ethnic cleansing, designed to erase the physical evidence of coexistence and minority presence.⁴⁹ The International Criminal Tribunal for the former Yugoslavia subsequently prosecuted individuals for attacks on cultural property, establishing a precedent for individual criminal accountability that directly informed the Rome Statute.⁵⁰ Adopted in 1998, the Rome Statute of the ICC explicitly criminalised intentional attacks on historic monuments and religious and cultural buildings as war crimes in both international and non-international armed conflicts, addressing the critical gap left by the 1954 Convention, which had been designed primarily for interstate conflicts.⁵¹

The destruction of the Bamiyan Buddhas by the Taliban in 2001 exposed yet another structural gap: no mechanism existed to respond to heritage destruction carried out by a governing authority on its own territory outside of an armed conflict with another state.⁵² This episode accelerated a normative shift in which heritage destruction came to be understood as a threat to international peace and security, a framing that ultimately produced UN Security Council Resolution 2347 in 2017, the first resolution dedicated exclusively to cultural heritage protection, formally recognising intentional destruction as a tactic of war.⁵³

⁴⁷ UNESCO. (1972). *Convention Concerning the Protection of the World Cultural and Natural Heritage*. <https://whc.unesco.org/en/convention/>

⁴⁸ UNESCO. (1970). *Convention on the Means of Prohibiting and Preventing the Illicit Import, Export and Transfer of Ownership of Cultural Property*. <https://www.unesco.org/en/legal-affairs/convention-means-prohibiting-and-preventing-illicit-import-export-and-transfer-ownership>

⁴⁹ UNESCO. (2004). *Stari Most — Mostar's Old Bridge*. <https://whc.unesco.org/en/list/946>

⁵⁰ International Criminal Tribunal for the Former Yugoslavia. (2001). *Prosecutor v. Blaškić* (Case No. IT-95-14). <https://www.icty.org/en/case/blaskic>

⁵¹ International Criminal Court. (1998). *Rome Statute of the International Criminal Court*. <https://www.icc-cpi.int/resource-library/documents/rs-eng.pdf>

⁵² Francioni, F., & Lenzerini, F. (2003). The destruction of the Buddhas of Bamiyan and international law. *European Journal of International Law*, 14(4), 619–651. <https://doi.org/10.1093/ejil/14.4.619>

⁵³ United Nations Security Council. (2017). *Resolution 2347 (S/RES/2347)*. [https://undocs.org/S/RES/2347\(2017\)](https://undocs.org/S/RES/2347(2017))

05

Current Situation

The destruction of cultural heritage in armed conflict is not a relic of history. It is happening right now and is accelerating. The early 21st Century has produced a sustained, global assault on the places that human communities use to remember who they are. What makes the current moment distinct is not simply the scale of destruction, it is the growing body of evidence that much of this destruction is not accidental. It is deliberate, strategic, and, in many cases, goes entirely unpunished.

Heritage Destruction as a Strategy of War

Despite decades of legal frameworks insisting otherwise, the world still does not fully treat the destruction of cultural heritage as the weapon it frequently is. Heritage destruction functions as a weapon of war in several distinct and overlapping ways.

The most visible is identity erasure. Every community anchors its sense of self in physical place. Destroying these places does not merely damage property. It severs the connection between a living community and its past, sending a message that is simultaneously military and existential. The second function is demoralization. Populations under attack draw psychological sustenance from the continuity of familiar places. Military strategists have long understood this and utilised this as part of their strategies. Third, heritage destruction is frequently used to eliminate evidence. Archaeological sites contain physical proof of habitation proof that a particular people lived in a particular place for a particular length of time. Destroying those sites destroys the evidence. This is not incidental: in conflicts where competing territorial claims rest partly on historical presence, the elimination of archaeological proof is a strategic act with long-term political consequences.

Finally, heritage destruction serves as an instrument of ideological assertion. Religious symbols are often destroyed with the intent of not only erasing its existence in that area, but to leave space for a different religion, ethnicity, or nation to take its place.

What all of these functions share is intentionality. They are not accidents of war. They are choices and the failure to treat them as such has allowed perpetrators to hide

behind the fog of conflict, claiming that damage was unavoidable, that military necessity prevailed, that the real target was something else. The documentation work being done by UNESCO, by satellite imagery analysts, by investigative journalists and by local community members is building an evidentiary record that increasingly makes these excuses impossible to sustain.

State Responsibility and Non-State Armed Groups

The central accountability gap in international heritage law can be stated simply: the framework was designed for a world of states fighting each other, and that is not the world we live in.

The 1954 Hague Convention binds states. The Rome Statute can prosecute individuals. What neither instrument fully addresses is the sprawling middle ground; the non-state armed groups that have carried out some of the most systematic heritage destruction of the modern era, and the states that arm, fund, or tolerate them without ever formally directing their actions.

When state armed forces destroy cultural heritage, the legal picture is theoretically clearer. A state whose military deliberately targets a protected site is in violation of the Hague Convention. Its individual commanders may be liable under the Rome Statute for war crimes. The state itself may bear responsibility under customary international law for internationally wrongful acts. In practice, however, accountability for state actors remains almost entirely theoretical. No state has ever been formally convicted of heritage destruction as a distinct internationally wrongful act.

The challenge posed by non-state armed groups is different and in some ways even more intractable. Groups like ISIS, Ansar Dine, the Taliban, and various militia forces operating across the Sahel, the Middle East, and beyond are not parties to the Hague Convention. They cannot be sued before international courts in the traditional sense. Their individual members may theoretically be prosecuted under the Rome Statute; the Al Mahdi case proved that this is possible but prosecution requires arrest, arrest requires custody, and custody requires either the group's defeat or extraordinary international cooperation which rarely materializes.

This leaves the question of state complicity. When a state funds, arms, or provides political cover to a non-state group that goes on to destroy cultural heritage, what responsibility does that state bear? International law has wrestled with this question in the context of human rights violations for decades, and the answers remain contested. The degree of control a state must exercise over a group before its actions become attributable to that

state the so-called "effective control" test established in the Nicaragua case sets a very high bar. In practice, states can provide substantial support to non-state actors engaged in heritage destruction while maintaining plausible deniability.

There is also the question of omission. States are obliged under international law not merely to refrain from destroying cultural heritage themselves but to take measures to prevent its destruction by others within their territory or control. When a government is unable or unwilling to protect heritage sites under threat from armed groups operating within its borders, the question of responsibility becomes deeply uncomfortable particularly when the international community is simultaneously denying that government the resources or military support it would need to actually protect those sites.

The current legal framework creates a perverse situation: the actors most responsible for heritage destruction are often those least affected by accountability mechanisms, while the actors most reachable states can deflect responsibility through the non-state groups they enable.

Challenges to Accountability

Even where the legal framework theoretically applies and political will theoretically exists, the practical obstacles to accountability for heritage destruction are formidable.

Documentation during active conflict is the most immediate challenge. Evidence of heritage destruction must be gathered as quickly as possible after damage occurs, before further destruction, looting, or reconstruction obscures the record. Active conflict zones are precisely the places where access is most restricted, where local experts are most at risk, and where the infrastructure for systematic documentation is the most likely to have collapsed. UNESCO has developed remote-sensing monitoring tools and partnerships with satellite imagery providers to track damage from a distance, but while remote sensing can identify that destruction has occurred; it cannot always establish how, by whom, or with what intent. The difference between targeted destruction and collateral damage is a legal and moral distinction of enormous consequence, which is also the hardest to prove.

Establishing intent is the second major challenge. International law does not criminalize all wartime damage to cultural heritage, only deliberate attacks. Proving deliberateness requires demonstrating that the attacker knew the site had cultural significance, that the site was not being used for military purposes at the time of the attack, and that the attacker chose to strike it anyway. Each of these elements is difficult to establish, particularly when the perpetrating party controls the relevant communications, intelligence assessments, and military records. Perpetrators have become increasingly sophisticated in constructing alternative narratives: cultural sites were being used as military positions; the destruction was an unavoidable consequence of legitimate military

action; the targeting was carried out by the other side. Countering these narratives requires the kind of detailed, meticulous, contemporaneous documentation that is extremely hard to produce under fire.

Jurisdictional limitations compound these difficulties. The International Criminal Court can only prosecute individuals who are nationals of states which have ratified the Rome Statute, or whose crimes were committed on the territory of such states unless the UN Security Council refers the situation to the Court. This means that nationals of non-signatory states, including major military powers, are effectively beyond the Court's reach unless the Security Council acts which, as noted, the veto structure makes it extremely unlikely when a permanent member is involved. The Al Mahdi conviction was possible because Mali had ratified the Rome Statute, and because the perpetrators were members of a non-state group without a powerful patron to block proceedings.

The tension between accountability and reconstruction is a challenge that is rarely acknowledged but deserves serious attention. The international community's instinct after heritage destruction is often to rebuild to restore the lost monument, reconstruct the damaged mosque, and replicate the destroyed library. This impulse is understandable and, in many cases, genuinely valuable for community healing. The reconstruction of Timbuktu's mausoleums, undertaken with UNESCO support after the Al Mahdi conviction, was meaningful precisely because it accompanied rather than replaced a process of legal accountability.

Political selectivity may be the deepest challenge of all. The international response to heritage destruction has never been consistent. The destruction of European heritage often generates immediate, sustained, high-profile international attention. The destruction of heritage in non-Western states generates condemnations and then, often, silence. This double standard is not merely an ethical failure; it is a practical obstacle to building the kind of universal, principled accountability framework that would actually deter future destruction. As long as accountability is selectively applied based on geopolitical interest rather than consistent legal principle, perpetrators everywhere will correctly calculate that their chances of facing consequences depend less on what they did than on who they are and who their friends are.

This is the landscape delegates must navigate. The challenge is not simply to condemn heritage destruction; the international community has been doing that for decades without much effect. The challenge is to design accountability mechanisms that can actually reach the perpetrators, actually function during active conflict rather than only in its aftermath, and actually apply with enough consistency to function as a genuine deterrent. That is a harder, more specific, and more urgent task.

06

Past International Actions and Current Mechanisms

UNESCO Initiatives

UNESCO's work in protecting cultural heritage consists of an international legal structure that puts in place a basic set of standards and provides the means for states to work together. The most prominent is the 1954 Hague Convention for the Protection of Cultural Property in the Event of Armed Conflict, which established the first comprehensive framework for safeguarding cultural property during times of war. Adopted in response to the wide-scale devastation caused by World War II, its primary purpose was to provide legal protection for cultural property such as monuments, museums, and archives. The Convention establishes a system where cultural sites are identified through the use of the Blue Shield emblem and holds states accountable by requiring them to prevent damage to or theft and illegal trade of cultural objects.

UNESCO further strengthened the international heritage protection framework through the 1972 Convention concerning the Protection of the World Cultural and Natural Heritage, as it legally binds member nations to identify, protect, preserve, and transmit cultural and natural heritage sites of "Outstanding Universal Value" for future generations. The Convention for the Safeguarding of the Intangible Cultural Heritage is another binding international treaty designed to protect living cultural traditions with the goals of safeguarding these practices, ensuring respect for the communities that create them, and raising global awareness.

In order to fulfil and implement the obligations stated in these legal agreements, UNESCO has established different operational mechanisms that monitor the condition of cultural heritage sites and consequently help in coordinating the response of the international community should these sites be under threat. These include the World Heritage List, which recognizes cultural and natural properties of Outstanding Universal Value, and the

List of World Heritage in Danger, which identifies sites under threat from armed conflict, natural disasters, climate change, and other factors.

UNESCO works with its Member States to assess the state of conservation of World Heritage properties and make recommendations for proper protection, through its various Reactive Monitoring missions and Periodic Reporting. In cases of armed conflict, UNESCO complements its legal framework through operational measures that are intended to prevent the destruction of cultural heritage and support post-conflict recovery. It coordinates emergency response missions, conducts assessments of damage, coordinates with national authorities and heritage professionals to document losses, secure endangered collections, and develop strategies for reconstruction.

Moreover, UNESCO promotes international awareness through campaigns such as #Unite4Heritage. The campaign was launched in response to the destruction of several cultural heritage sites in Syria, Iraq, and other countries by extremist groups. It encourages governments, cultural institutions, and the public to work together to prevent cultural heritage destruction and illegal trafficking.

UNESCO cooperates closely with Member States to implement practical measures for the protection of cultural heritage, working directly with governments, researchers, cultural institutions, municipalities, and other stakeholders to provide training programmes and resources to site managers, communities, and policymakers. It focuses its contributions on practical workshops, disaster management, and digital documentation to sustainably safeguard tangible heritage.

Key UNESCO initiatives include the World Heritage Capacity Building Strategy, which promotes training, institutional development, and knowledge-sharing among heritage professionals and local communities, Priority Africa (Flagship Programme 3), targeting World Heritage conservation particularly in African states, strengthening their capacities to fight against illicit trafficking of cultural property and the preservation and promotion of collections and museums, and many other initiatives supporting specifically the protection of intangible heritage.

In each of these areas, UNESCO's actions are carried out in collaboration with states with the consent and participation of the national authorities concerned. UNESCO provides its expertise, methodological tools, and platforms on which to exchange ideas, while the national and local authorities have the main role as far as the development and implementation of any necessary policies and measures are concerned. Beyond direct cooperation with Member States, UNESCO also promotes international cooperation. Through global and regional platforms, the organization facilitates discussions about policy development, best practices, and funding priorities and leads global debates on

heritage and intercultural dialogue, providing space for nations and experts to share their experiences and struggles.

International Law and the International Criminal Court

International Humanitarian Law and Cultural Property⁵⁴

Three foundational IHL principles are directly relevant:

- distinction = requires parties to distinguish between civilian objects and military objectives;
- proportionality = prohibits attacks causing excessive incidental damage; and
- military necessity = permits only measures which are indispensable to achieving a legitimate military objective.

Cultural property qualifies as a civilian object under IHL unless used for military purposes, a condition frequently invoked by parties seeking to justify attacks on heritage sites.⁵⁵

Building on these principles, the First Protocol of the 1954 Hague Convention obliged occupying powers to prevent the export of cultural property from occupied territories, while the Second Protocol of 1999 introduced enhanced protection for the most significant sites and, critically, established individual criminal responsibility for serious violations, the first time the Hague framework incorporated individual accountability rather than relying exclusively on state responsibility.^{56 57} As of 2024, however, only 85 states had ratified the Second Protocol, leaving a significant portion of the international community outside its enhanced protection regime.⁵⁸

⁵⁴ International Committee of the Red Cross. (2005). *Customary international humanitarian law, Volume I: Rules*. Cambridge University Press. <https://www.icrc.org/en/doc/assets/files/other/customary-international-humanitarian-law-i-icrc-eng.pdf>

⁵⁵ Henckaerts, J. M., & Doswald-Beck, L. (2005). *Customary international humanitarian law, Volume I: Rules*. Cambridge University Press / ICRC. <https://doi.org/10.1017/CBO9780511804700>

⁵⁶ UNESCO. (1954). *Convention for the Protection of Cultural Property in the Event of Armed Conflict*. <https://en.unesco.org/protecting-heritage/convention-and-protocols/1954-convention>

⁵⁷ UNESCO. (1999). *Second Protocol to the Hague Convention of 1954 for the Protection of Cultural Property in the Event of Armed Conflict*. <https://en.unesco.org/protecting-heritage/convention-and-protocols/second-protocol>

⁵⁸ UNESCO. (2024). *States parties to the Second Protocol*. <https://en.unesco.org/protecting-heritage/convention-and-protocols/states-parties>

The Rome Statute and Individual Criminal Responsibility

The Rome Statute of the ICC, entering into force in 2002, provides the principal mechanism for individual criminal accountability. Article 8(2)(b)(ix) criminalises intentional attacks against historic monuments and buildings dedicated to religion, education, art or science in international armed conflict, while Article 8(2)(e)(iv) replicates this prohibition for non-international armed conflict, a significant inclusion given that the majority of heritage destruction since 1998 has occurred in internal conflicts involving non-state actors.⁵⁹

Nevertheless, the Court may only exercise jurisdiction over nationals of states parties or over crimes committed on state party territory, unless the Security Council refers a situation under Chapter VII of the UN Charter meaning nationals of non-signatory states are effectively beyond the Court's reach without a referral that the veto structure makes nearly impossible when a permanent member is involved.⁶⁰

The Al Mahdi Case: Legal Precedent and Remaining Questions

The 2016 conviction of Ahmad Al Faqi Al Mahdi, produced three legally significant outcomes. The Trial Chamber confirmed that intentional destruction of cultural sites constitutes a war crime even without direct loss of human life; the reparations order established that victims are entitled to collective reparations including reconstruction costs; and the case demonstrated that prosecution of non-state actors for heritage destruction is legally feasible, even if the conditions that made it possible remain exceptional.^{61 62}

The case did not address how the Rome Statute applies to heritage destruction carried out by state armed forces, nor did it resolve the question of command responsibility, the doctrine under which military commanders may be held responsible for crimes committed by forces under their effective control. These are gaps directly relevant to ongoing situations where state or state-affiliated actors are responsible for documented heritage destruction.⁶³

⁵⁹ International Criminal Court. (1998). *Rome Statute of the International Criminal Court*. <https://www.icc-cpi.int/rsource-library/documents/rs-eng.pdf>

⁶⁰ Francioni, F. (2004). Beyond state sovereignty: The protection of cultural heritage as a shared interest of humanity. *Michigan Journal of International Law*, 25(4), 1209–1228.

⁶¹ International Criminal Court. (2016). *Prosecutor v. Ahmad Al Faqi Al Mahdi, Judgment and Sentence* (ICC-01/12-01/15). <https://www.icc-cpi.int/mali/al-mahdi>

⁶² International Criminal Court. (2017). *Prosecutor v. Ahmad Al Faqi Al Mahdi, Reparations Order* (ICC-01/12-01/15-236). <https://www.icc-cpi.int/mali/al-mahdi>

⁶³ Schabas, W. A. (2016). *The International Criminal Court: A commentary on the Rome Statute* (2nd ed.). Oxford University Press.

State Responsibility

Where the Rome Statute cannot reach, the International Law Commission's Articles on Responsibility of States for Internationally Wrongful Acts (2001) establish that a state bears international responsibility for breaches of obligations under the 1954 Hague Convention and customary IHL attributable to it.⁶⁴

In principle, such a state could be brought before the International Court of Justice. In practice, no state has ever been successfully held responsible before an international court specifically for heritage destruction, a gap reflecting both political constraints on interstate litigation and the structural limitation of a system entirely dependent on states choosing to bring other states to account.⁶⁵

UN Resolutions and International Cooperation

Resolution 2347 (2017) was the first Security Council resolution dedicated exclusively to cultural heritage protection, formally recognising intentional heritage destruction as a tactic of war and a potential threat to international peace and security. It called upon states to develop national inventories of cultural property, strengthen border controls, improve judicial cooperation and support UNESCO's monitoring capacity.⁶⁶

Resolution 2199 (2015) condemned ISIS's destruction and prohibited trade in illegally removed cultural property from Iraq and Syria.⁶⁷

Resolution 2509 (2020) and **Resolution 2585 (2021)** addressed heritage protection in Libya and Syria respectively, urging compliance with IHL obligations and calling on Member States to prevent illicit trafficking from those territories.^{68 69}

General Assembly Resolution 69/281 (2015) called for a global response to deliberate heritage destruction and illicit trafficking of cultural property and consistently referenced heritage protection as a component of post-conflict reconciliation.⁷⁰

⁶⁴ International Law Commission. (2001). *Articles on Responsibility of States for Internationally Wrongful Acts*. United Nations.https://legal.un.org/ilc/texts/instruments/english/draft_articles/9_6_2001.pdf

⁶⁵ Forrest, C. (2010). *International law and the protection of cultural heritage*. Routledge.

⁶⁶ United Nations Security Council. (2017). *Resolution 2347 (S/RES/2347)*.[https://undocs.org/S/RES/2347\(2017\)](https://undocs.org/S/RES/2347(2017))

⁶⁷ United Nations Security Council. (2015). *Resolution 2199 (S/RES/2199)*.[https://undocs.org/S/RES/2199\(2015\)](https://undocs.org/S/RES/2199(2015))

⁶⁸ United Nations Security Council. (2020). *Resolution 2509 (S/RES/2509)*.[https://undocs.org/S/RES/2509\(2020\)](https://undocs.org/S/RES/2509(2020))

⁶⁹ United Nations Security Council. (2021). *Resolution 2585 (S/RES/2585)*.[https://undocs.org/S/RES/2585\(2021\)](https://undocs.org/S/RES/2585(2021))

⁷⁰ United Nations General Assembly. (2015). *Resolution 69/281 (A/RES/69/281)*.<https://undocs.org/A/RES/69/281>

International cooperation has proven equally essential in translating these normative commitments into practice; INTERPOL's Works of Art unit coordinates cross-border law enforcement efforts to identify and recover looted cultural property;⁷¹ the World Customs Organization has developed specific guidelines for customs officials to intercept illicitly trafficked cultural goods at border crossings;⁷² and the European Union adopted Council Regulation 2019/880, establishing harmonised import controls specifically targeting cultural property removed from conflict zones.⁷³

However, the current system faces structural limitations: Security Council resolutions on cultural heritage are adopted under Chapter VI rather than Chapter VII of the UN Charter, meaning they call upon rather than compel states to act, with no automatic enforcement consequences for non-compliance;⁷⁴ the definition of cultural heritage itself remains contested, with significant disagreements over what qualifies as heritage worthy of protection and whose heritage counts; and state sovereignty continues to be routinely invoked to resist external scrutiny of domestic heritage policy.⁷⁵

⁷¹ INTERPOL. (2022). *Works of art: Protecting cultural heritage*. <https://www.interpol.int/en/Crimes/Cultural-heritage-crime>

⁷² World Customs Organization. (2020). *Guidelines on combating customs offences relating to cultural property*. <https://www.wcoomd.org/>

⁷³ European Union. (2019). *Council Regulation (EU) 2019/880 on the introduction and the import of cultural goods*. <https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX:32019R0880>

⁷⁴ Forrest, C. (2010). *International law and the protection of cultural heritage*. Routledge.

⁷⁵ Blake, J. (2000). On defining the cultural heritage. *International and Comparative Law Quarterly*, 49(1), 61–85. <https://doi.org/10.1017/S002058930006396X>

07

Key Stakeholders and Bloc Positions

European Union and Western Allies

This group believes in strong accountability measures and are entirely pro-regulation. The European bloc advocates for criminal prosecution and binding state obligations when cultural heritage is destroyed as a deliberate weapon of war.⁷⁶ This bloc has historically been involved or even the drivers of the development of the legal instruments protecting cultural heritage.⁷⁷ The EU has even adopted a Council Resolution (2019/880) to declare how important cultural goods are and to prevent trafficking of items of cultural heritage. The bloc stands by the position that expanding ICC jurisdiction, mandatory reporting from market actors, and proactive digital surveillance of online antiquities sales is the solution.⁷⁸ Accountability must be punitive and reconstructive for the community as a whole.⁷⁹ The European bloc argues that the way forward is a robust international accountability framework, based on the “shared interest of humanity”.⁸⁰

⁷⁶ Dijkstal, H. J. (2019). Destruction of cultural heritage before the ICC. *Journal of International Criminal Justice*, 17(2), 391–412. <https://doi.org/10.1093/jicj/mqz017>

⁷⁷ Boylan, P. J. (1993). Review of the Convention for the Protection of Cultural Property in the Event of Armed Conflict (The Hague Convention of 1954). UNESCO. <https://unesdoc.unesco.org/ark:/48223/pf0000102816>

⁷⁸ European Parliament. (2023). Protecting cultural heritage from armed conflicts in Ukraine and beyond. Policy Department for Structural and Cohesion Policies. https://www.europarl.europa.eu/RegData/etudes/STUD/2023/733120/IPOL_STU%282023%29733120_EN.pdf

⁷⁹ Wierczyńska, K., & Jakubowski, A. (2017). Individual responsibility for deliberate destruction of cultural heritage: Contextualising the ICC judgment in the Al-Mahdi case. *Chinese Journal of International Law*, 16(4), 695–721. <https://doi.org/10.1093/chinesejil/jmx029>

⁸⁰ Francioni, F. (2004). Beyond state sovereignty: The protection of cultural heritage as a shared interest of humanity. *Michigan Journal of International Law*, 25(4), 1209–1228

United States and Common Law Allies

This bloc shares the idea that condemnation is required for the destruction of cultural heritage, however, they diverge from the European bloc on the appropriate measures. They prioritise national sovereignty and voluntary cooperation, alongside market-based solutions.⁸¹ They are sceptical of enforcement mechanisms which require international judicial proceedings. Some of these states have not ratified the Second Protocol to the 1954 Hague Convention due to this reason.⁸² This bloc prefers to use sanctions and trade restrictions to combat the destruction of global heritage.⁸³ This bloc focuses on preventing and monitoring the artifact trafficking avenues and how they finance terrorist networks.⁸⁴ This involves working with other enforcement agencies or committees such as INTERPOL or the United Nations Office on Drugs and Crime (UNODC).

States Directly Affected by Heritage Destruction

This bloc consists of states whose cultural heritage has been directly affected or damaged by armed conflict. These states are often the ones who advocate the most for international accountability, reconstruction, and recognition as a trifold framework.⁸⁵ This bloc often supports language and statements which characterise the intentional destruction of cultural heritage as an attack on human dignity.⁸⁶ This bloc supports continuous funding mechanisms for occurrences of reconstruction.⁸⁷ These states often require criminal prosecution, state responsibility for the failure to protect and reparations for affected communities to be part of the accepted solutions moving forward.

⁸¹ Forrest, C. (2010). *International law and the protection of cultural heritage*. Routledge.

⁸² UNESCO. (2024). States parties to the Second Protocol. <https://en.unesco.org/protecting-heritage/convention-and-protocols/states-parties>

⁸³ United Nations Security Council. (2015). Resolution 2199 (S/RES/2199). [https://undocs.org/S/RES/2199\(2015\)](https://undocs.org/S/RES/2199(2015))

⁸⁴ Brodie, N. (2015). Syria and its regional neighbours: A case of cultural property protection policy failure? *International Journal of Cultural Property*, 22(2–3), 317–335. <https://doi.org/10.1017/S0940739115000132>

⁸⁵ International Criminal Court. (2017). Prosecutor v. Ahmad Al Faqi Al Mahdi, Reparations Order (ICC-01/12-01/15-236). <https://www.icc-cpi.int/mali/al-mahdi>

⁸⁶ UN Special Rapporteur on Cultural Rights. (2016). Report on the intentional destruction of cultural heritage (A/71/317). United Nations. <https://undocs.org/A/71/317>

⁸⁷ Isakhan, B., & Meskell, L. (2019). UNESCO's project to 'Revive the Spirit of Mosul': Iraqi and Syrian opinion on heritage reconstruction after the Islamic State. *International Journal of Heritage Studies*, 25(11), 1189–1204. <https://doi.org/10.1080/13527258.2019.1578988>

States with Sovereignty Concerns

This bloc is formed of states who endorse protection of cultural heritage but oppose any systematic accountability mechanism which could be used against state actors.⁸⁸ Another mechanism these states oppose is establishing precedent in international courts that allow for scrutiny or examination of how states govern heritage issues within their own borders.⁸⁹ The core belief of this bloc is that cultural heritage should be protected, but not at the cost of state sovereignty. These states believe that each issue should be governed domestically, and do not want ICC jurisdiction to be expanded for risk of foreign intervention into state matters. These states also resist international verification mechanisms regarding documentation and monitoring destruction or damage to cultural heritage.⁹⁰ This bloc believes the way to move forward is to use a framework of independent state implementation.

Developing States

This bloc views accountability while focusing on highlighting structural inequality. These states often argue that meaningful heritage protection requires them to address the disparities in institutional capacity, technologies and funding available to different states and organisations. Developing states often suffer disproportionately more from destruction of heritage, as they are more likely to have active armed conflicts, and they possess the fewest resources to combat the destruction as it occurs and afterwards. The destruction of these states' heritage is often undocumented and not prioritised for repair or discussion on rebuilding, so they often feel left out of the conversation. This bloc highly supports the guidelines by the World Customs Organisation in 2020 even as they require sustained investments into training and technology, and further institutional development.

⁸⁸ Schabas, W. A. (2016). *The International Criminal Court: A commentary on the Rome Statute* (2nd ed.). Oxford University Press.

⁸⁹ International Law Commission. (2001). *Articles on Responsibility of States for Internationally Wrongful Acts*. United Nations. https://legal.un.org/ilc/texts/instruments/english/draft_articles/9_6_2001.pdf

⁹⁰ Lostal, M. (2017). *International cultural heritage law in armed conflict: Case studies of Syria, Libya, Mali, the invasion of Iraq, and the Buddhas of Bamiyan*. Cambridge University Press

08

Questions a Resolution Must Answer

- How can the international community overcome UNESCO's financial, operational, and institutional limitations to improve the protection of cultural heritage in conflict-affected areas?
- How can the international community effectively document violations, preserve evidence, and ensure accountability for the destruction of cultural heritage while an armed conflict is ongoing?
- Are the existing international legal mechanisms sufficient to deter and prosecute the intentional destruction of cultural heritage, or should additional accountability mechanisms be developed?
- What concrete mechanisms can UNESCO and the international community establish to ensure rapid, well-funded and coordinated emergency responses to heritage destruction in active conflict zones?
- How can the international community develop reliable systems for documenting and preserving evidence of heritage destruction during ongoing armed conflicts, so that this evidence can effectively support future accountability and prosecution proceedings?
- How should the international community extend accountability for cultural heritage destruction to both non-state armed groups and state forces responsible for the deliberate targeting or systematic neglect of heritage?
- What measures can the international community adopt to ensure that accountability mechanisms for heritage destruction are applied consistently and universally?

Bibliography

- ASOR Cultural Heritage Initiatives. (2015). *Cultural heritage destruction and looting in Syria and Iraq: Monthly report*. American Schools of Oriental Research. <https://www.asor.org/chi/>
- Blake, J. (2000). On defining the cultural heritage. *International and Comparative Law Quarterly*, 49(1), 61–85. <https://doi.org/10.1017/S002058930006396X>
- Blue Shield International. (2020). *About Blue Shield*. <https://theblueshield.org/about-us/>
- Boylan, P. J. (1993). *Review of the Convention for the Protection of Cultural Property in the Event of Armed Conflict (The Hague Convention of 1954)*. UNESCO. <https://unesdoc.unesco.org/ark:/48223/pf0000102816>
- Brodie, N. (2015). Syria and its regional neighbours: A case of cultural property protection policy failure? *International Journal of Cultural Property*, 22(2–3), 317–335. <https://doi.org/10.1017/S0940739115000132>
- Di Giovine, M. (2015). *UNESCO's World Heritage Program: The challenges and ethics of community participation*. OpenEdition. <https://books.openedition.org/gup/213>
- Dijkstal, H. J. (2019). Destruction of cultural heritage before the ICC. *Journal of International Criminal Justice*, 17(2), 391–412. <https://doi.org/10.1093/jicj/mqz017>
- European Parliament. (2023). *Protecting cultural heritage from armed conflicts in Ukraine and beyond*. Policy Department for Structural and Cohesion Policies. https://www.europarl.europa.eu/RegData/etudes/STUD/2023/733120/IPOL_STU%282023%29733120_EN.pdf
- European Union. (2019). *Council Regulation (EU) 2019/880 on the introduction and the import of cultural goods*. <https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX:32019R0880>
- Forrest, C. (2010). *International law and the protection of cultural heritage*. Routledge.
- Francioni, F. (2004). Beyond state sovereignty: The protection of cultural heritage as a shared interest of humanity. *Michigan Journal of International Law*, 25(4), 1209–1228.
- Francioni, F., & Lenzerini, F. (2003). The destruction of the Buddhas of Bamiyan and international law. *European Journal of International Law*, 14(4), 619–651. <https://doi.org/10.1093/ejil/14.4.619>
- Hague Convention IV Respecting the Laws and Customs of War on Land. (1907). Articles 27 and 56. <https://ihl-databases.icrc.org/en/ihl-treaties/hague-regs-1907>
- Henckaerts, J. M., & Doswald-Beck, L. (2005). *Customary international humanitarian law, Volume I: Rules*. Cambridge University Press / ICRC. <https://doi.org/10.1017/CBO9780511804700>
- International Committee of the Red Cross. (2005). *Customary international humanitarian law, Volume I: Rules*. Cambridge University Press. <https://www.icrc.org/en/doc/assets/files/other/customary-international-humanitarian-law-i-icrc-eng.pdf>

- International Criminal Court. (1998). *Rome Statute of the International Criminal Court*. <https://www.icc-cpi.int/resource-library/documents/rs-eng.pdf>
- International Criminal Court. (2016). *Prosecutor v. Ahmad Al Faqi Al Mahdi, Judgment and Sentence* (ICC-01/12-01/15). <https://www.icc-cpi.int/mali/al-mahdi>
- International Criminal Court. (2017). *Prosecutor v. Ahmad Al Faqi Al Mahdi, Reparations Order* (ICC-01/12-01/15-236). <https://www.icc-cpi.int/mali/al-mahdi>
- International Criminal Tribunal for the Former Yugoslavia. (2001). *Prosecutor v. Blaškić* (Case No. IT-95-14). <https://www.icty.org/en/case/blaskic>
- International Law Commission. (2001). *Articles on Responsibility of States for Internationally Wrongful Acts*. United Nations. https://legal.un.org/ilc/texts/instruments/english/draft_articles/9_6_2001.pdf
- INTERPOL. (2022). *Works of art: Protecting cultural heritage*. <https://www.interpol.int/en/Crimes/Cultural-heritage-crime>
- Isakhan, B., & Meskell, L. (2019). UNESCO's project to 'Revive the Spirit of Mosul': Iraqi and Syrian opinion on heritage reconstruction after the Islamic State. *International Journal of Heritage Studies*, 25(11), 1189–1204. <https://doi.org/10.1080/13527258.2019.1578988>
- Lieber, F. (1863). *Instructions for the Government of Armies of the United States in the Field* (General Orders No. 100). United States War Department.
- Lostal, M. (2017). *International cultural heritage law in armed conflict: Case studies of Syria, Libya, Mali, the invasion of Iraq, and the Buddhas of Bamiyan*. Cambridge University Press.
- Maurel, C. (2017, January 11). The unintended consequences of UNESCO world heritage listing. *The Conversation*. <https://theconversation.com/the-unintended-consequences-of-unesco-world-heritage-listing-71047>
- Meskell, L. (2018). *A future in ruins: UNESCO, world heritage, and the dream of peace*. Oxford University Press.
- Schabas, W. A. (2016). *The International Criminal Court: A commentary on the Rome Statute* (2nd ed.). Oxford University Press.
- UN Special Rapporteur on Cultural Rights. (2016). *Report on the intentional destruction of cultural heritage* (A/71/317). United Nations. <https://undocs.org/A/71/317>
- UNESCO. (1954). *Convention for the Protection of Cultural Property in the Event of Armed Conflict*. <https://en.unesco.org/protecting-heritage/convention-and-protocols/1954-convention>
- UNESCO. (1970). *Convention on the Means of Prohibiting and Preventing the Illicit Import, Export and Transfer of Ownership of Cultural Property*. <https://www.unesco.org/en/legal-affairs/convention-means-prohibiting-and-preventing-illicit-import-export-and-transfer-ownership>
- UNESCO. (1972). *Convention Concerning the Protection of the World Cultural and Natural Heritage*. <https://whc.unesco.org/en/convention/>

- UNESCO. (1999). *Second Protocol to the Hague Convention of 1954 for the Protection of Cultural Property in the Event of Armed Conflict*. <https://en.unesco.org/protecting-heritage/convention-and-protocols/second-protocol>
- UNESCO. (2003). *Convention for the Safeguarding of the Intangible Cultural Heritage*. <https://ich.unesco.org/en/convention>
- UNESCO. (2004). *Stari Most — Mostar's Old Bridge*. <https://whc.unesco.org/en/list/946>
- UNESCO. (2015). *UNESCO Director-General condemns destruction of Nimrud in Iraq*. <https://www.unesco.org/en/articles/unesco-director-general-condemns-destruction-nimrud-iraq>
- UNESCO. (2023). *World Heritage List*. <https://whc.unesco.org/en/list/>
- UNESCO. (2024). *States parties to the Second Protocol*. <https://en.unesco.org/protecting-heritage/convention-and-protocols/states-parties>
- UNESCO World Heritage Centre. (n.d.). *Reconstruction of the destroyed mausoleums of Timbuktu (Mali)*. <https://whc.unesco.org/en/canopy/timbuktu/>
- United Nations. (1945). *Charter of the United Nations*. <https://www.un.org/en/about-us/un-charter>
- United Nations. (2015). *The 17 Sustainable Development Goals*. <https://sdgs.un.org/goals>
- United Nations. (2025). A realistic goal? Culture in the Sustainable Development Agenda. *UN Chronicle*. <https://www.un.org/en/un-chronicle/realistic-goal-culture-sustainable-development-agenda>
- United Nations General Assembly. (2015). *Resolution 69/281 (A/RES/69/281)*. <https://undocs.org/A/RES/69/281>
- United Nations Security Council. (2015). *Resolution 2199 (S/RES/2199)*. [https://undocs.org/S/RES/2199\(2015\)](https://undocs.org/S/RES/2199(2015))
- United Nations Security Council. (2017). *Resolution 2347 (S/RES/2347)*. [https://undocs.org/S/RES/2347\(2017\)](https://undocs.org/S/RES/2347(2017))
- United Nations Security Council. (2020). *Resolution 2509 (S/RES/2509)*. [https://undocs.org/S/RES/2509\(2020\)](https://undocs.org/S/RES/2509(2020))
- United Nations Security Council. (2021). *Resolution 2585 (S/RES/2585)*. [https://undocs.org/S/RES/2585\(2021\)](https://undocs.org/S/RES/2585(2021))
- Wierczyńska, K., & Jakubowski, A. (2017). Individual responsibility for deliberate destruction of cultural heritage: Contextualising the ICC judgment in the Al-Mahdi case. *Chinese Journal of International Law*, 16(4), 695–721. <https://doi.org/10.1093/chinesejil/jmx029>
- World Customs Organization. (2020). *Guidelines on combating customs offences relating to cultural property*. <https://www.wcoomd.org/The>

Further Readings

- Abtahi, H. (2001). The protection of cultural property in times of armed conflict: The practice of the International Criminal Tribunal for the Former Yugoslavia. *Harvard Human Rights Journal*, 14, 1–32.
- Brosché, J., Legnér, M., Kreutz, J., & Ijla, A. (2017). Heritage under attack: Motives for targeting cultural property during armed conflict. *International Journal of Heritage Studies*, 23(3), 248–260. <https://doi.org/10.1080/13527258.2016.1261918>
- Gerstenblith, P. (2016). The destruction of cultural heritage: A crime against property or a crime against people? *John Marshall Review of Intellectual Property Law*, 15(3), 336–393.
- Merryman, J. H. (1986). Two ways of thinking about cultural property. *American Journal of International Law*, 80(4), 831–853.
- O'Keefe, R. (2006). *The Protection of Cultural Property in Armed Conflict*. Cambridge University Press.
- Toman, J. (1996). *The Protection of Cultural Property in the Event of Armed Conflict: Commentary on the Convention for the Protection of Cultural Property in the Event of Armed Conflict and its Protocol, signed on 14 May, 1954 in The Hague*. Dartmouth / UNESCO.
- Vrdoljak, A. F. (2006). *International Law, Museums and the Return of Cultural Objects*. Cambridge University Press.
- Weiss, T. G., & Connelly, N. (2017). *Cultural Cleansing and Mass Atrocities: Protecting Cultural Heritage in Armed Conflict Zones*. J. Paul Getty Trust.